

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARK ANTHONY ALVARADO,

Petitioner

VS.

DAISY GARCIA,

Respondent

) Case Number: FMS-18-387144

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING; REQUEST FOR ORDER TO TRANSFER VENUE TO SOLANO
COUNTY, WHERE THE MINOR CHILD AND BOTH PARTIES CURRENTLY RESIDE

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Mark Anthony Alvarado (Father) and Respondent Daisy Gomez (Mother). There is one minor child subject to this proceeding: Joseph Alvarado (DOB: 02/06/12).
- 2) On July 17, 2025, the Court issued the following relevant orders:
 - a. Mother shall have temporary sole legal custody of the minor child, Joseph.
 - b. Joseph shall continue to reside with Mother.
 - c. Therapeutic services for Joseph shall be initiated immediately, both for individual therapy and for possible future reunification therapy if clinically recommended.
 - d. Supervised contact between Joseph and members of Father's extended family may be considered if Joseph desires it, provided such contact occurs in a setting where Joseph feels safe and supported.

- 1 e. Matter continued to October 16, 2025 at 9:00 a.m. in Department 403 for review of
2 Joseph's therapy and evaluation of current orders.
- 3 3) On October 16, 2025, the matter was continued to November 25, 2025, based on unavailability of
4 a Court Reporter; the parties did not waive the Court Reporter.
- 5 4) On November 25, 2025, the Court issued the following relevant orders:
- 6 a. Mother's request for sole legal custody is denied.
- 7 b. The Court finds good cause to adopt Minor's Counsel's recommendations, as set forth in
8 his October 15, 2025, filing with modification to #3. The Court will modify #3 to include
9 "or other trusted professional."
- 10 c. The Court set a review hearing for April 7, 2026 at 9:00 a.m., in Department 403.
- 11 5) On January 27, 2026, Father filed a motion for change of venue from San Francisco County to
12 Solano County. The matter is set for hearing on April 14, 2026.
- 13 6) As of April 4, 2026, neither party filed an update declaration.
- 14 7) At the prior April 7, 2026 hearing, the Court issued the following orders:
- 15 a. The Court does not adopt the tentative ruling.
- 16 b. The hearing on Father's motion for change of venue (set for April 14, 2026) is hereby
17 advanced to April 7, 2026. The Court reserves jurisdiction on Father's request to change
18 venue.
- 19 c. All matters are hereby continued for 60 days to allow time for the minor child to attend
20 therapy and review progress of Father's supervised visits.
- 21 d. Matter was continued to June 9, 2026 for review of visits and for consideration of motion
22 for change of venue.
- 23 8) On May 27, 2026, Father filed "Petitioner's Updated Status Declaration," which has been read
24 and considered by this Court.

25 **B. Findings and Order**

- 26 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
27 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
28 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
29 child is the United States.

2) **The parties are ordered to appear.**